

26STCV00484 26STCV00484

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 26STCV00484 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RONALD J. RADKE,

Plaintiff,

vs.

JOHN DOE 1, et al.,

Defendants.

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CASE NO.: 26STCV00484

[TENTATIVE] ORDER CONTINUING MOTION FOR EARLY
DISCOVERY

Dept. 506

8:30 a.m.

July 16, 2026

On January 7, 2026, Plaintiff

Ronald J. Radke filed this action against Doe Defendants. Plaintiff's claims arise from online social media accounts that are allegedly impersonating him.

On

June 17, 2026, Plaintiff filed a motion for early discovery. Plaintiff seeks leave to serve subpoenas on Snap Comcast Cable Communications, LLC and AT&T, Inc. for the production of business records related to the IP addresses that Plaintiff learned through other early discovery. Plaintiff has not provided copies of any subpoenas.

In

a series of cases, the courts have grappled with subpoenas seeking to discover the identities of defendants sued for making anonymous statements on the Internet that allegedly defame the plaintiff or interfere with the plaintiff's business. In *Krinsky v. Doe 6* (2008) 159 Cal.App.4th 1154 (*Krinsky*), the court explained that “‘an author's decision to remain anonymous . . . is an aspect of the freedom of speech protected by the First Amendment.’ [Citation.]” (*Id.* at pp. 1164-1165.) The court set out a process for a plaintiff subpoenaing an Internet service provider, website, or other third party for identifying information about the unknown defendant.

The

first requirement is an attempt to notify the defendant that disclosure of his or her identity is sought. Often, the subpoenaed third party can notify the defendant that disclosure is sought. (Id. at p. 1171.) Later courts followed Krinsky in requiring notification. (Glassdoor, Inc. v. Superior Court (2017) 9 Cal.App.5th 623, 634 ["First, if the defendant has not received notice of the attempt to lift the shield of anonymity, the plaintiff must make reasonable efforts to provide such notice."]; ZL Technologies, Inc. v. Does 1-7 (2017) 13 Cal.App.5th 603, 615 ["a court must ensure reasonable efforts are made to notify the defendants, permitting them an opportunity to respond, before disclosure of their identities may be compelled"]; Yelp Inc. v. Superior Court 17 Cal.App.5th 1, 14 (Yelp) ["the trial court should direct the subpoenaed party to provide [the notice]"].)

Plaintiff

is not able to give notice because he does not know the identities of the people who are assigned the IP addresses. The purpose of giving notice to anonymous commenters is "permitting them an opportunity to respond." (Yelp, supra, 17 Cal.App.5th at p. 14.) There is no evidence that the account holders have notice of this motion or that they have any information about this action. Therefore, before the Court can proceed, there must be reasonable efforts to notify the defendants and provide them an opportunity to respond.

The

Court ORDERS Plaintiff to serve his subpoenas on Comcast Cable Communications, LLC and AT&T, Inc. within 14 days of this order.

The

Court ORDERS Comcast Cable Communications, LLC and AT&T, Inc. to:

1. Give

notice to the person or persons identified in the subpoenas that Plaintiff Ronald J. Radke in Case No. 26STCV00484, pending in the Superior Court of California, County of Los Angeles, has subpoenaed the person's or persons' identifying information from Comcast Cable Communications, LLC and AT&T, Inc. The notice is to state that the person or persons have 30 days from the date Comcast Cable Communications, LLC and AT&T, Inc. give notice to file a response to the subpoenas in Case No. 26STCV00484 if they object to their identifying information being disclosed. The person or persons may file any response using a pseudonym. Snap Comcast Cable Communications,

LLC and AT&T, Inc. are to give this notice within 14 days of their counsel receiving copies of the subpoenas and this order.

2. Deliver a copy of the notice, with any identifying information redacted, to counsel for Plaintiff at the same time Comcast Cable Communications, LLC and AT&T, Inc. give the notice.

The
hearing on the motion is CONTINUED to October 22, 2026 at 8:30 a.m.

Plaintiff
is ORDERED file (1) copies of the subpoenas served on Comcast Cable Communications, LLC and AT&T, Inc.; (2) proof of service of this order on counsel for Comcast Cable Communications, LLC and AT&T, Inc.; and (3) a copy of the notice that Plaintiff received from Comcast Cable Communications, LLC and AT&T, Inc.. These items are to be filed no later than 7 calendar days before the hearing.

The
Court will not sign the proposed order submitted on June 17, 2026.

Plaintiff
is ordered to give notice of this order to Comcast Cable Communications, LLC and AT&T, Inc.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 16th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court